

Jai Prakash Maurya v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 October 2013 · Writ-C No. 58102 of 2013 · **Writ dismissed for want of prosecution; clause 6.5 alternative noted.**

HEADNOTE

Writ petition dismissed for want of prosecution after none appeared for the petitioner even on a revised call. The Court recorded, even otherwise, that an efficacious statutory alternative remedy lay under clause 6.5 of the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Jai Prakash Maurya filed a writ petition against the State of Uttar Pradesh and another in the Allahabad High Court. When the matter was called on 23 October 2013, nobody appeared for the petitioner even after a revised reading of the list. Counsel for the respondents submitted that the petitioner had an efficacious statutory alternative remedy under clause 6.5 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy

HOLDING

The writ was dismissed for want of prosecution after none appeared for the petitioner on a revised call. The Court recorded that, even otherwise, clause 6.5 of the Electricity Supply Code, 2005 afforded an efficacious statutory alternative remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S SUPPLY GRIEVANCE

No facts of the dispute were examined; the writ was dismissed for want of prosecution. ¶ 1